

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Hallie Gorman Campbell

Department 2	June 3, 2026	8:30 am	DA Case #	Date Filed
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19	CVL67608	Synchrony Bank vs. Barbara Falk		08/27/2025
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Synchrony Bank

Attorney: Raymond
Patenaude

Barbara Falk

Motion Hearing - Judgment on the Pleadings

RESERVED

08/27/2025 Complaint

File Tracking

09/08/2025 High Density

This is a collections case. Before the Court is a motion for judgment on the pleadings. Like a general demurrer, a MJOP challenges the sufficiency of the plaintiff's cause of action; it raises the legal issue of whether the complaint states a cause of action, and is not a challenge to the validity of the claim itself. See *Greif v. Sanin* (2022) 74 Cal.App.5th 412, 426. Because a MJOP by a plaintiff must show (1) that the complaint states facts sufficient to constitute a viable claim against the defendant and (2) that the answer does not state facts sufficient to constitute a defense thereto (see CCP §438(c)), the motion for judgment on the pleadings must address *both* the complaint *and* the answer, and very frequently the motion only addresses the complaint.

The answer in this case admits all charges and the defendant has asked for time to work out a settlement. The court has previously given the parties time to do so, and plaintiff has filed a declaration on attempts to meet and confer. The tentative ruling would be to grant the motion. However, the parties are reminded that a settlement is often a better way to resolve than simply a judgment and should considering coming to court with an offer.